



ESTATE PLANNING • INSIGHT

The Importance of Estate Planning, Securing Your Family's Future

Emily Johnson • Esq., Estate Planning Attorney, Sterling & Cross

Most people put off estate planning for the same reason they put off anything uncomfortable, it forces a conversation about mortality most of us would rather avoid. The cost of that avoidance, though, tends to land squarely on the family left behind.

Dying without a will is more disruptive than people expect

Without a will, Illinois intestacy law decides who inherits what, a formula that often does not match what someone would have actually wanted. It can also mean a longer, more expensive probate process, and real disagreement among survivors at an already difficult time.

"A short conversation now can spare your family a much longer one later."

A living trust can spare your family probate entirely

Assets placed in a properly funded living trust generally bypass probate altogether, transferring to beneficiaries faster and more privately than assets passed through a will alone. This matters more than people assume, probate in Illinois can take the better part of a year, sometimes longer.

Power of attorney documents matter while you are still alive

Estate planning is not only about what happens after death. A durable power of attorney for healthcare and finances ensures someone you actually trust can make decisions on your behalf if you become unable to, rather than leaving that decision to a court.

Review your plan more often than you think you need to

A will drafted a decade ago may no longer reflect your family, your assets, or your wishes. Marriage, divorce, a new child, a significant change in assets, all of these are reasons to revisit an existing plan, not just create one and forget it.

None of this needs to be complicated or overwhelming when it is handled properly the first time, which is exactly what a straightforward planning session with an attorney can do for you.

WRITTEN BY

Emily Johnson

Esq., Estate Planning Attorney, Sterling & Cross

Have a matter like this?

Book a consultation and we'll connect you with the right team.

sterlingcross.law

© Sterling & Cross Law Firm. This publication is provided for general informational purposes only and does not constitute legal advice. Reading this document does not create an attorney-client relationship. For advice on your specific situation, please contact us directly at hello@sterlingcross.law.